

**ALABAMA DEPARTMENT OF REVENUE
ADMINISTRATIVE CODE**

**CHAPTER 810-3-60
ALABAMA ACCOUNTABILITY ACT-PARENT TAX CREDITS**

**810-3-60-.04 Calculation Of Average Annual Cost Of Attendance
For A Public K-12 Student.**

(1) Scope. This rule is issued pursuant to Section 16-6D-1, Code of Ala. 1975, to provide guidance to parents who are eligible to claim a refundable income tax credit under the Alabama Accountability Act of 2013.

(2) For purposes of calculating the 80% of the average annual cost of attendance for a public K-12 student limitation as referenced in Rule 810-3-60-.01, the Department of Finance will provide the amounts of the average state cost of attendance for a public K-12 student for each fiscal year pertaining to the current school year.

(a) For example, the Department of Finance will provide the average state annual cost of attendance for a public K-12 student for fiscal year ending September 30, 2013 and fiscal year ending September 30, 2014 for purposes of determining the average cost of attendance for the 2013-2014 school year.

(b) To determine the average cost of attendance for the 2013-2014 school year, the Department shall calculate this number by multiplying 80% of the FY 2013 cost of attendance by 9/12 and 80% of the FY 2014 cost of attendance by 3/12.

(c) For the 2013-2014 school year, the 80% of the average annual cost of attendance for a public K-12 student is calculated as follows:

$$(\$3,538 \times 9/12) + (\$3,639 \times 3/12) = \$3,563$$

(3) This number will be updated annually based upon the average state cost of attendance for a public K-12 student, as determined by the Department of Finance, by using the methodology stated within this rule.

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Statutory Authority: Code of Ala. 1975, §§40-2A-7(a)(5), 16-6D-1.

History: New Rule: Filed November 20, 2013, effective December 25, 2013.